



V/20
JANUARY 1995

~~SUPERINTENDENT
INCHARGE~~

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION AT PANAJI GOA.

SPL.CIVIL.SUIT NO. 222/94/B

**The Comunidade of Bambolim,by
its Special Power of Attorney,
Shri Jerome Monteiro,residing
at House No.9,Village Bambolim,
P.O.Goa Medical Complex,
Bambolim-Goa. Plaintiff.**

V/s.

**Shri Meximo Mergulhao (Since deceased)
legal representative,
Mrs.Deonosia Dias e Mergulhao,
residing at House No 1080
Segundo Bairro,Santa Cruz,
Ilhas-Goa 403 005. Defendant.**

1/2
SUPERINTENDENT

En to

IN THE COURT OF THE CIVIL JUDGE SENIOR DIVISION
AT PANAJI

SPL. CIV. Suit No.222/94/A

Comunidade of Bambolim

Plaintiffs

V/s

Shri Maximo Mergulhao (Deceased)

Defendants

through his heirs

Mrs. Dionisia Dias e Mergulhao

MAY IT PLEASE YOUR HONOUR,

The Plaintiffs and the Defendant submit as
under :

1. That the Plaintiffs had filed the present suit praying for a relief of Declaration and Permanent Injunction. The Plaintiff had also filed an application for temporary injunction with a prayer to restrain the Defendant his servants, agents, Servants, Attorneys and / or any other

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SUPERINTENDENT
COURT

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person or persons from carrying on any further construction or claiming, alienating, mortgaging or creating third party interest in the suit property.

2. That this Hon'ble Court was pleased to dismiss the application for temporary injunction vide Order dated 17/06/1996, consequent upon which the present suit was pending disposal.

3. That the Defendant has then approached the Plaintiffs and had requested the Plaintiffs to settle the matter amicably stating that both the parties were contesting an unnecessary litigation, and that the Defendant had all the documents to establish his entitlement to the property in question.

4. That the Defendant further stated that he intended developing the property by sub-dividing the property into plots, and that whilst doing so he would also take into consideration the interest of the 40 Gauncars of the Comunidade of Bambolim residing at Bambolim Village.

5. That with an intention of settling the

litigation once for all, the Defendant offered to allot 40 plots each admeasuring 252 square metres, to any Association that may be formed of the Gauncars of the Plaintiffs to enable the said Gauncars to constitute some Rules and Regulations for handing over the possession of the Plots to each of the Gauncars.

6. That the Defendant also offered to allot to the Plaintiffs 5 plots to enable the Plaintiffs also to sell the same and to realise some moneys and carry out some works in the interest of the share holders of the Plaintiffs.

7. That the Plaintiffs on consideration, have accepted the offer of the Defendant and the parties therefore hereby record the terms agreed upon amongst themselves.

COMPROMISE TERMS

A) The Defendant hereby agrees to allot in favour of the Association of the Gauncars of the

Comunidade of Bambolim, 40 plots, each admeasuring 252 square metres, 16 plots being denoted under Nos. 13, 14, and 29 to 42 located in Sy. No.93/2 ; 10 plots denoted under Nos. 9 to 15, and 21 to 23 located in Sy. No.93/3 ; 14 plots being denoted under Nos. 33 to 46 located in Sy. No.93/4 of Village of Bambolim, Tiswadi Taluka, under Village Panchayat of Curca, Bambolim & Talaulim as shown in the plans annexed hereto with boundaries of the plots marked in red colour ink.

B) The Defendant further agrees to allot in favour of the Plaintiffs 5 plots, each admeasuring 252 square metres, the same bearing Nos. 24 to 28 located in the Survey No.93/3 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim as shown in the above annexed plan of the said survey no.93/3.

C) In consideration of the allotment and the handing over of the plots aforesaid free from payment of any consideration, development charges, and subject to the subsisting rights in terms of the allotment as aforesaid, the Plaintiffs hereby agree that they have no claim, right, title, interest,

objection regarding the ownership and/or development of the properties bearing Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim.

D) The Plaintiffs hereby declare that they have no dispute or claim as against the owners of Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim in the Taluka of Tiswadi and shall make a letter to that effect addressed to the Village Panchayat of Curca, Bambolim & Talaulim in Tiswadi Taluka.

E) The plots allotted as aforesaid shall be incorporated in the development plan in the manner as appearing in the plan annexed to this Compromise Terms, and which plan shall form a part of these Compromise Terms.

F) The Plaintiffs in lieu of the offer and the allotment of the sub-divided plots as aforesaid do hereby declare that they have No Objection to the Defendants and / or his nominees to negotiate and enter into any agreement of sale / sale deeds

in respect of Sy. nos. 89/3 and 90/1. However, the Defendants will only be entitled to enter into Agreements of sale of the plots in the properties bearing Sy. nos. 93/2, 93/3 and 93/4 of the Village of Bambolim in Taluka Tiswadi, other than the plots allotted and reserved for the Gauncars and the Comunidade as mentioned in clause A and B above.

G) The Defendant shall hand over the subdivided plots as aforesaid and as agreed upon after obtaining Final NOC on or before the expiry of 36 months from the date of execution of these presents, time being the essence of the terms, failing which the Defendant shall be liable to pay a sum of Rs.300/- as damages in respect of each plot and per month of delay.

H) The Defendant specifically undertakes not to hand over the possession of any of the plots in the Survey Nos. 93/2, 93/3 and 93/4 of the Village of Bambolim in the Taluka of Tiswadi to any other person, without first handing over the possession of the 45 plots as agreed upon hereinabove.

I) It has however been agreed that the possession of the Plots to be allotted to the Plaintiffs Comunidade shall be handed over to the Attorney of the Plaintiffs, whilst the plots to be handed over to the Gauncars shall be handed over jointly to four representatives from the Village, the same being Mr. Sidel Gonsalves, Mr. Reinar Luz da Souza, Mr. Mario de Souza and Mr. Lington Monteiro, who shall be responsible to make the allotment of the specific plot to any person as may be agreed upon by them.

J) That the Defendants shall execute the Deed of Sale as may be desired by the Plaintiff Comunidade or by the aforesaid four representatives as and when intimated to the Defendants. The person in whose favour the plot is transferred, however shall be liable to pay the necessary expenses for the Stamp duty, Registration charges and advocates fees.

K) The Defendant has the full right to enter into any Agreement in respect to the plots other than the 45 plots mentioned hereinabove with any

prospective Purchasers was also to carry on the development of the properties aforesaid without any objection whatsoever from the Plaintiffs.

L) The parties hereby submit that in view of the terms as above, there are no subsisting disputes in respect to the properties bearing Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka, under the Village Panchayat of Curca, Bambolim & Talaulim.

M) The parties in terms agreed upon herein, shall enter into a separate agreement indicating that the Plaintiffs have No Objection to the carrying of the development in the properties bearing Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim

N) The Defendant shall have an option to offer to the Plaintiffs the plots in any one survey number and provided the Plaintiffs and the said four representatives of the Gauncars are satisfied, the plots offered in lieu of the present allotment shall be accepted.

O) The parties hereto have specifically agreed that these terms shall supersede any earlier Agreements, Discussions and understanding between the parties.

P) The parties shall bear their own costs.

In view of the settlement as aforesaid, it is prayed that the suit be please decreed, on the aforesaid compromise terms.

Place : Panaji, Goa.

Dated : 19-11-98

Raghuvaran Tandon

Mrs. Dionisia Dias e Mergulhao
Attorney of Defendant

Jerome Monteiro

Mr. Jerome Monteiro
Attorney of Plaintiffs

[Signature]

Adv. for Defendant

[Signature]

Adv. for Plaintiffs

ORDER

I am of the opinion that the parties having voluntarily signed the Consent Terms, the suit stands lawfully compounded.

Consent Terms ordered to be recorded.

No order as to costs, i.e. Parties to bear own costs.

Suit decreed on consent Terms.

Decree accordingly.

[Signature]
21/11/98
ACJSD, PJM

For Record

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~~Fernandez~~

~~15/02/09~~



Vs.
SUPERINTENDENT
INTENDENT

~~SUPERINTENDENT~~
~~INTENDENT~~

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION AT PANAJI GOA.

SPL.CIVIL.SUIT NO. 222/94/B

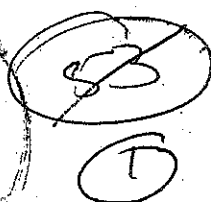
The Comunidade of Bambolim, by
its Special Power of Attorney,
Shri Jerome Monteiro, residing
at House No.9, Village Bambolim,
P.O. Goa Medical Complex,
Bambolim-Goa. Plaintiff.

V/s.

Shri Meximo Mergulhao (Since deceased)
legal representative,
Mrs. Deonosa Dias e Mergulhao,
residing at House No 1080
Segundo Bairro, Santa Cruz,
Ilhas-Goa 403 005. Defendant.

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En to



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AT PANAJI

SPL. CIV. Suit No.222/94/A

Comunidade of Bambolim

Plaintiffs

V/s

Shri Maximo Mergulhao (Deceased)

Defendants

through his heirs

Mrs. Dionisia Dias e Mergulhao

MAY IT PLEASE YOUR HONOUR,

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under :

1. That the Plaintiffs had filed the present suit praying for a relief of Declaration and Permanent Injunction. The Plaintiff had also filed an application for temporary injunction with a prayer to restrain the Defendant his servants, agents, Servants, Attorneys and / or any other

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SUPERINTENDENT
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person or persons from carrying on any further construction or claiming, alienating, mortgaging or creating third party interest in the suit property.

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3. That the Defendant has then approached the Plaintiffs and had requested the Plaintiffs to settle the matter amicably stating that both the parties were contesting an unnecessary litigation, and that the Defendant had all the documents to establish his entitlement to the property in question.

4. That the Defendant further stated that he intended developing the property by sub-dividing the property into plots, and that whilst doing so he would also take into consideration the interest of the 40 Gauncars of the Comunidade of Bambolim residing at Bambolim Village.

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6. That the Defendant also offered to allot to the Plaintiffs 5 plots to enable the Plaintiffs also to sell the same and to realise some moneys and carry out some works in the interest of the share holders of the Plaintiffs.

7. That the Plaintiffs on consideration, have accepted the offer of the Defendant and the parties therefore hereby record the terms agreed upon amongst themselves.

COMPROMISE TERMS

A) The Defendant hereby agrees to allot in favour of the Association of the Gauncars of the

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B) The Defendant further agrees to allot in favour of the Plaintiffs 5 plots, each admeasuring 252 square metres, the same bearing Nos. 24 to 28 located in the Survey No.93/3 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim as shown in the above annexed plan of the said survey no:93/3.

C) In consideration of the allotment and the handing over of the plots aforesaid free from payment of any consideration, development charges, and subject to the subsisting rights in terms of the allotment as aforesaid, the Plaintiffs hereby agree that they have no claim, right, title, interest,

objection regarding the ownership and/or development of the properties bearing Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim.

D) The Plaintiffs hereby declare that they have no dispute or claim as against the owners of Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim in the Taluka of Tiswadi and shall make a letter to that effect addressed to the Village Panchayat of Curca, Bambolim & Talaulim in Tiswadi Taluka.

E) The plots allotted as aforesaid shall be incorporated in the development plan in the manner as appearing in the plan annexed to this Compromise Terms, and which plan shall form a part of these Compromise Terms.

F) The Plaintiffs in lieu of the offer and the allotment of the sub-divided plots as aforesaid do hereby declare that they have No Objection to the Defendants and / or his nominees to negotiate and enter into any agreement of sale / sale deeds

in respect of Sy. nos. 89/3 and 90/1. However, the Defendants will only be entitled to enter into Agreements of sale of the plots in the properties bearing Sy. nos. 93/2, 93/3 and 93/4 of the Village of Bambolim in Taluka Tiswadi, other than the plots allotted and reserved for the Gauncars and the Comunidade as mentioned in clause A and B above.

G) The Defendant shall hand over the subdivided plots as aforesaid and as agreed upon after obtaining Final NOC on or before the expiry of 36 months from the date of execution of these presents, time being the essence of the terms, failing which the Defendant shall be liable to pay a sum of Rs. 300/- as damages in respect of each plot and per month of delay.

H) The Defendant specifically undertakes not to hand over the possession of any of the plots in the Survey Nos. 93/2, 93/3 and 93/4 of the Village of Bambolim in the Taluka of Tiswadi to any other person, without first handing over the possession of the 45 plots as agreed upon hereinabove.

I) It has however been agreed that the possession of the Plots to be allotted to the Plaintiffs Comunidade shall be handed over to the Attorney of the Plaintiffs, whilst the plots to be handed over to the Gauncars shall be handed over jointly to four representatives from the Village, the same being Mr. Sidel Gonsalves, Mr. Reinar Luz da Souza, Mr. Mario de Souza and Mr. Lington Monteiro, who shall be responsible to make the allotment of the specific plot to any person as may be agreed upon by them.

J) That the Defendants shall execute the Deed of Sale as may be desired by the Plaintiff Comunidade or by the aforesaid four representatives as and when intimated to the Defendants. The person in whose favour the plot is transferred, however shall be liable to pay the necessary expenses for the Stamp duty, Registration charges and advocates fees.

K) The Defendant has the full right to enter into any Agreement in respect to the plots other than the 45 plots mentioned hereinabove with any

prospective Purchasers was also to carry on the development of the properties aforesaid without any objection whatsoever from the Plaintiffs.

L) The parties hereby submit that in view of the terms as above, there are no subsisting disputes in respect to the properties bearing Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka, under the Village Panchayat of Curca, Bambolim & Talaulim.

M) The parties in terms agreed upon herein, shall enter into a separate agreement indicating that the Plaintiffs have No Objection to the carrying of the development in the properties bearing Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim

N) The Defendant shall have an option to offer to the Plaintiffs the plots in any one survey number and provided the Plaintiffs and the said four representatives of the Gauncars are satisfied, the plots offered in lieu of the present allotment shall be accepted.

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O) The parties hereto have specifically agreed that these terms shall supersede any earlier Agreements, Discussions and understanding between the parties.

P) The parties shall bear their own costs.

In view of the settlement as aforesaid, it is prayed that the suit be please decreed, on the aforesaid compromise terms.

Place : Panaji, Goa.

Dated : 19-11-98

Raghuvaran Tandon

Mrs. Dionisia Dias e Mergulhao
Attorney of Defendant

Jerome Monteiro

Mr. Jerome Monteiro
Attorney of Plaintiffs

I. S. L. C.

Adv. for Defendant

Aditum

Adv. for Plaintiffs

ORDER

I am of the opinion that the parties having voluntarily signed the Consent Terms, the suit stands lawfully compounded.

Consent Terms ordered to be recorded.
No order as to costs, i.e. Parties to bear own costs.
Suit decreed on consent Terms.
Decree accordingly.

21/11/98
ACJSO, PJM

X

For Record

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13-621 13-2-09

Fernandez

13/02/09



URGENT

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Ch-11

IN THE COURT OF CIVIL JUDGE SENIOR DIVISION AT PANAJI.
Special Civil Suit No 222/94/B.

The Comunidade of Bambolim, by
its Special Power of Attorney,
Shri Jerome Monteiro, residing
at House No.9, Village Bambolim
P.O. Goa Medical Complex,
Bambolim - Goa.Plaintiff.

V/s

Shri Maximo Mergulhao (since deceased)
Legal representative,
Mrs. Deonesia Dias e Mergulhao,
residing at - House No.1080,
Segundo Bairro, Santa Cruz,
Ilhas - Goa - 403 005.Defendant.

D E C R E E

Suit filed on 8.12.1994.

Suit disposed on 21.11.1998.

This is a suit for declaration and permanent
injunction filed by the plaintiff against the defendant
praying for :-

...2/-



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- a) a declaration that the property identified under survey No.89/3 forms a part of property 'OROS' bearing Lote No.43, Adicao 'A' as per Book Tombo-I.
 - b) a permanent injunction, restraining the defendants, his servants, agents, attorneys and/or any other person or persons claiming through him from (i) carrying on any further construction in the suit property; and (ii) alienating the suit property in any form whatsoever, including claiming, mortgaging or creating third party rights ;.
 - c) a temporary injunction, restraining the defendants, his servants, agents, attorneys and/or any other person or persons claiming through him from (i) carrying on any further construction in the suit property; and (ii) alienating the suit property in any form whatsoever, including claiming, mortgaging or creating third party rights, pending ^{the} hearing and final disposal of this suit;
 - d) ad-interim ex-parte reliefs in terms of prayer (c) hereinabove.
 - e) such other and further reliefs that this Hon'ble Court deems fit and proper.
 - f) for costs.

This suit coming on this day for final disposal before Shri Desmond D'Costa, Civil Judge, Senior Division, Panaji, in presence of Shri Kirtani, Advocate for the plaintiff and Shri K. Shetye, Advocate for the defendant. It is ordered that I am of the opinion that the parties having voluntarily signed the consent terms, the suit stands lawfully compounded. Consent terms ordered to be recorded. No order as to costs, i.e. parties to bear own costs. Suit decreed on consent terms. Decree accordingly as per the following consent terms.

- 1) The defendant hereby agrees to allot in favour of the Association of the Gauncars of the Comunidade of Bambolim, 40 plots, each admeasuring 252 square metres, 16 plots being denoted under Nos.13, 14, and 29 to 42 located in Sy. No.93/2, 10 plots denoted under Nos.9 to 15

...3/-



- 3 -

and 21 to 23 located in Sy. No. 93/3, 14 plots being denoted under Nos. 33 to 46 located in Sy. No. 93/4 of Village of Bambolim, Tiswadi Taluka, under village Panchayat of Curca, Bambolim & Talaulim as shown in the plans annexed hereto with boundaries of the plots marked in red colour ink.

2) The defendant further agrees to allot in favour of the plaintiffs 5 plots, each admeasuring 252 square metres, the same bearing No.s 24 to 28 located in the Survey No. 93/3 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim as shown in the above annexed plan of the said survey no. 93/3.

3) In consideration of the allotment and the handing over of the plots aforesaid free from payment of any consideration, development charges, and subject to the subsisting rights in terms of the allotment as aforesaid, the plaintiffs hereby agree that they have no claim, right, title, interest, objection regarding the ownership and/or development of the properties bearing Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim.

4) The plaintiffs hereby declare that they have no dispute or claim as against the owners of Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim in the Taluka of Tiswadi and shall make a letter to that effect addressed to the Village Panchayat of Curca, Bambolim & Talaulim in Tiswadi Taluka.

5) The plots allotted as aforesaid shall be incorporated in the development plan in the manner as appearing in the plan annexed to this Compromise terms, and which plan shall form a part of these Compromise terms.

6) The plaintiffs in lieu of the offer and the allotment of the sub-divided plots as aforesaid do hereby declare that they have no objection to the defendants and/or his nominees to negotiate and enter into any agreement of sale/ sale deeds in respect of Sy. nos. 89/3 and 90/1. However the defendants will only be entitled to enter into Agreements of sale of the plots in the properties bearing Sy. nos. 93/2, 93/3 and ...4/-



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SUPERINTENDENT
MUNICIPALITY

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93/4 of the Village of Bambolim in Taluka Tiswadi, other than the plots allotted and reserved for the Gauncars and the Comunidade as mentioned in clause A and B above.

7) The defendant shall hand over the sub divided plots as aforesaid and as agreed upon after obtaining final NOC on or before the expiry of 36 months from the date of execution of these presents, time being the essence of the terms, failing which the defendant shall be liable to pay a sum of Rs.300/- as damages in respect of each plot and per month of delay.

8) The defendant specifically undertakes not to hand over the possession of any of the plots in the survey No.s 93/2, 93/3 and 93/4 of the Village of Bambolim in the Taluka of Tiswadi to any other person, without first handing over the possession of the 45 plots as agreed upon hereinabove.

9) It has however been agreed that the possession of the plots to be allotted to the plaintiffs Comunidade shall be handed over to the Attorney of the plaintiffs, whilst the plots to be handed over to the Gauncars shall be handed over jointly to four representatives from the Village, the same being Mr. Sidel Gonsalves, Mr. Reinar Luz da Souza, Mr. Mario de Souza and Mr. Lington Monteiro, who shall be responsible to make the allotment of the specific plot to any person as may be agreed upon by them.

10) That the defendants shall execute the Deed of Sale as may be desired by the plaintiff Comunidade or by the aforesaid four representatives as and when intimated to the defendants. The person in whose favour the plot is transferred, however shall be liable to pay the necessary expenses for the Stamp duty, Registration charges and advocate fees.

11) The defendant has the full right to enter into any Agreement in respect to the plots other than the 45 plots mentioned hereinabove with any prospective purchasers as also to carry on the development of the properties aforesaid without any objection whatsoever from the plaintiffs.

12) The parties hereby submit that in view of the terms

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SUPERINTENDENT

as above, there are no subsisting disputes in respect to the properties bearing Sy.Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka, under the Village Panchayat of Curca, Bambolim & Talaulim.

13) The parties in terms agreed upon herein, shall enter into a separate agreement indicating that the plaintiffs have no objection to the carrying of the development in the properties bearing Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim.

14) The defendant shall have an option to offer to the plaintiffs the plots in any one survey number and provided the plaintiffs and the said four representatives of the Gauncars are satisfied, the plots offered in lieu of the present allotment shall be accepted.

15) The parties hereto have specifically agreed that these terms shall supersede any earlier Agreements, Discussions and understanding between the parties.

16) The parties shall bear their own costs.

BILL OF COSTS

	Plaintiff		Defendant.	
	Rs.	P.	Rs.	P.
Stamp for plaint.	871	00	0	00
Stamp for power.	0	50	0	50
Stamp for Exhibit.	0	50	0	50
Process fees.	14	00	0	00
Total:-	886	00	1	00

GIVEN under my hand and the seal of the Court, this 21st day of November, 1998.

(Desmond D'Costa)
Civil Judge Senior Division, Panaji.

Prepared by :-

(E. Soares)
UDC

Checked by:-

(N. B. Kalanoutkar)
Superintendent.

For Record

DATE on which ... 13.2.09
Date of ... 13.2.09
Date given for ... 20.12.09
Date on which ... 13.2.09
Date on which ... 13.2.09
... etc.
... Government
... side receipt
... 13.2.09

Vernandis
13/02/09





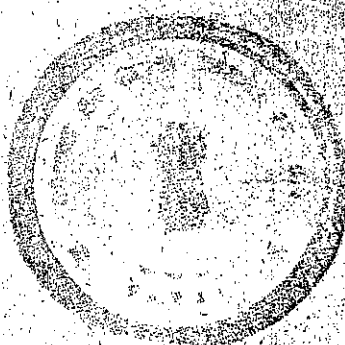
SUPERINTENDENT
COURT

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Ch-11



IN THE COURT OF CIVIL JUDGE SENIOR DIVISION AT PANAJI.
Special Civil Suit No 222/94/B.

The Comunidade of Bambolim, by
its Special Power of Attorney,
Shri Jerome Monteiro, residing
at House No. 9, Village Bambolim
P.O. Goa Medical Complex,
Bambolim - Goa.

....Plaintiff.

V/s

Shri Maximo Mergulhao (since deceased)
Legal representative,
Mrs. Deonisia Dias e Mergulhao,
residing at House No. 1080,
Segundo Bairro, Santa Cruz,
Ilhas - Goa - 403 005.

....Defendant.

D E C R E E

Suit filed on 8.12.1994.

Suit disposed on 21.11.1998.

This is a suit for declaration and permanent
injunction filed by the plaintiff against the defendant
praying for :-

...2/-



1/2
SUPERINTENDENT

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- 2 -

- a) a declaration that the property identified under survey No.89/3 forms a part of property 'OROS' bearing Lote No.43, Adicao 'A' as per Book Tombo-I.
- b) a permanent injunction, restraining the defendants, his servants, agents, attorneys and/or any other person or persons claiming through him from (i) carrying on any further construction in the suit property; and (ii) alienating the suit property in any form whatsoever, including claiming, mortgaging or creating third party rights ;.
- c) a temporary injunction, restraining the defendants, his servants, agents, attorneys and/or any other person or persons claiming through him from (i) carrying on any further construction in the suit property; and (ii) alienating the suit property in any form whatsoever, including claiming, mortgaging or creating third party rights, pending ^{the} hearing and final disposal of this suit;
- d) ad-interim ex-parte reliefs in terms of prayer (c) hereinabove.
- e) such other and further reliefs that this Hon'ble Court deems fit and proper.
- f) for costs.

This suit coming on this day for final disposal before Shri Desmond D'Costa, Civil Judge, Senior Division, Panaji, in presence of Shri Kirtani, Advocate for the plaintiff and Shri K. Shetye, Advocate for the defendant. It is ordered that I am of the opinion that the parties having voluntarily signed the consent terms, the suit stands lawfully compounded. Consent terms ordered to be recorded. No order as to costs, i.e. parties to bear own costs. Suit decreed on consent terms. Decree accordingly as per the following consent terms.

- 1) The defendant hereby agrees to allot in favour of the Association of the Gauncars of the Comunidade of Bambolim, 40 plots, each admeasuring 252 square metres, 16 plots being denoted under Nos.13, 14, and 29 to 42 located in Sy. No.93/2, 10 plots denoted under Nos.9 to 15

...3/-



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and 21 to 23 located in Sy. No.93/3, 14 plots being denoted under Nos. 33 to 46 located in Sy.No.93/4 of Village of Bambolim, Tiswadi Taluka, under village Panchayat of Curca, Bambolim & Talaulim as shown in the plans annexed hereto with boundaries of the plots marked in red colour ink.

2) The defendant further agrees to allot in favour of the plaintiffs 5 plots, each admeasuring 252 square metres, the same bearing No.s 24 to 28 located in the Survey No.93/3 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim as shown in the above annexed plan of the said survey no.93/3.

3) In consideration of the allotment and the handing over of the plots aforesaid free from payment of any consideration, development charges, and subject to the subsisting rights in terms of the allotment as aforesaid, the plaintiffs hereby agree that they have no claim, right, title, interest, objection regarding the ownership and/or development of the properties bearing Sy.Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim.

4) The plaintiffs hereby declare that they have no dispute or claim as against the owners of Sy. Nos.89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim in the Taluka of Tiswadi and shall make a letter to that effect addressed to the Village Panchayat of Curca, Bambolim & Talaulim in Tiswadi Taluka.

5) The plots allotted as aforesaid shall be incorporated in the development plan in the manner as appearing in the plan annexed to this Compromise terms, and which plan shall form a part of these Compromise terms.

6) The plaintiffs in lieu of the offer and the allotment of the sub-divided plots as aforesaid do hereby declare that they have no objection to the defendants and/or his nominees to negotiate and enter into any agreement of sale/ sale deeds in respect of Sy.nos. 89/3 and 90/1. However the defendants will only be entitled to enter into Agreements of sale of the plots in the properties bearing Sy.nos.93/2, 93/3 and ...4/-



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93/4 of the Village of Bambolim in Taluka Tiswadi, other than the plots allotted and reserved for the Gauncars and the Comunidade as mentioned in clause A and B above.

7) The defendant shall hand over the sub divided plots as aforesaid and as agreed upon after obtaining final NOC on or before the expiry of 36 months from the date of execution of these presents, time being the essence of the terms, failing which the defendant shall be liable to pay a sum of Rs.300/- as damages in respect of each plot and per month of delay.

8) The defendant specifically undertakes not to hand over the possession of any of the plots in the survey No.s 93/2, 93/3 and 93/4 of the Village of Bambolim in the Taluka of Tiswadi to any other person, without first handing over the possession of the 45 plots as agreed upon hereinabove.

9) It has however been agreed that the possession of the plots to be allotted to the plaintiffs Comunidade shall be handed over to the Attorney of the plaintiffs, whilst the plots to be handed over to the Gauncars shall be handed over jointly to four representatives from the Village, the same being Mr. Sidel Gonsalves, Mr. Reinar Luz da Souza, Mr. Mario de Souza and Mr. Lington Monteiro, who shall be responsible to make the allotment of the specific plot to any person as may be agreed upon by them.

10) That the defendants shall execute the Deed of Sale as may be desired by the plaintiff Comunidade or by the aforesaid four representatives as and when intimated to the defendants. The person in whose favour the plot is transferred, however shall be liable to pay the necessary expenses for the Stamp duty, Registration charges and advocate fees.

11) The defendant has the full right to enter into any Agreement in respect to the plots other than the 45 plots mentioned hereinabove with any prospective purchasers as also to carry on the development of the properties aforesaid without any objection whatsoever from the plaintiffs.

12) The parties hereby submit that in view of the terms
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as above, there are no subsisting disputes in respect to the properties bearing Sy.Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village of Bambolim, Tiswadi Taluka, under the Village Panchayat of Curca, Bambolim & Talaulim.

13) The parties in terms agreed upon herein, shall enter into a separate agreement indicating that the plaintiffs have no objection to the carrying of the development in the properties bearing Sy. Nos. 89/3, 90/1, 93/2, 93/3 and 93/4 of the Village Bambolim, Tiswadi Taluka under Village Panchayat of Curca, Bambolim & Talaulim.

14) The defendant shall have an option to offer to the plaintiffs the plots in any one survey number and provided the plaintiffs and the said four representatives of the Gauncars are satisfied, the plots offered in lieu of the present allotment shall be accepted.

15) The parties hereto have specifically agreed that these terms shall supersede any earlier Agreements, Discussions and understanding between the parties.

16) The parties shall bear their own costs.

BILL OF COSTS

	Plaintiff		Defendant.	
	Rs.	P.	Rs.	P.
Stamp for plaint.	871	00	0	00
Stamp for power.	0	50	0	50
Stamp for Exhibit.	0	50	0	50
Process fees.	14	00	0	00
Total:-	886	00	1	00

GIVEN under my hand and the seal of the Court, this 21st day of November, 1998.

(Desmond D'Costa)
Civil Judge Senior Division, Panaji.

Prepared by :-

(E. Soares)
UDC

Checked by:-

(N.B. Kalangutkar)
Superintendent.

Handwritten signature/initials

For Record

CERTIFIED COPY

Date on which copy spotted for 13.2.09

Date on which copy 13.2.09

Date given for 20.12.09

Date on which copy 13.2.09

Date on which copy 13.2.09

Copying and 13.2.09

Ca. 201 - 13.2.09

to the State Bank of India vide receipt

13-621 13.2.09

Fernandes
13/02/09

